

Superior Court (1992) 2 Cal.App.4th 1686, 1690, n. 3; *Hunt v. Hackett* (1973) 36 Cal.App.3d 134, 137-138; *Walker v. State Bar of California* (1989) 49 Cal.3d 1107, 1116.² Denying Taylor appointed counsel will not prevent him from receiving a service that the court otherwise provides.³

Second, it appears, under the circumstances of this case, that appointed counsel would exceed Rule 1.100's policy of providing disabled persons with full and equal access to court services, programs or activities. An "attorney's role" is to serve "as the client's confidential advisor and advocate, a loyal representative whose duty it is to present the client's case in the most favorable possible light." *U.S. v. Arthur Young & Co.* (1984) 465 U.S. 805, 817. Appointed counsel here would take on a role far beyond basic provision of full and equal access to court services and proceedings.

3. CU0002207 Deborah J. Carver vs. Michael W. Horner

On the Court's motion, the hearing regarding Plaintiff/Appellant Carver's amended, proposed settled statement is vacated.

Plaintiff/Appellant elected in her December 23, 2025, notice designating the record on appeal to use a settled statement as the record of the oral proceedings in the superior court. *See* Rules of Court, rule 8.137. Given that Defendant/Respondent Horner did not file a notice under Rule 8.137(b)(4)(A), electing to provide a reporter's transcript, Plaintiff/Appellant was obligated to file a proposed statement in the superior court within 30 days of December 23, 2025, that is, by on or about January 22, 2026. Plaintiff/Appellant then proceeded to file various *untimely* proposed settled statements from February 17, 2026 to February 25, 2026. The operative *untimely* amended proposed statement, filed February 25, 2026, then was *improperly* noticed for hearing on March 20, 2026. *See* Rules of Court, rule 8.137(f)(1). ("No hearing will be held unless ordered...") Judge Timothy Fall issued a tentative ruling in connection with the March 20, 2026, hearing, and continued the hearing to April 3, 2026 because Plaintiff had failed to notice her request for oral argument as required. *See* Local Rule 4.05.03, Rules of Court, rule 3.1308(a)(1). To date, it does not appear that Defendant/Respondent has filed his response as required (within 20 days of appellant's service of the proposed statement). *See* Rules of Court, rule 8.137(e).

Defendant/Respondent is directed to file his response by no later than April 23, 2026. Thereafter, any party may seek to set a review hearing, which will be set in the Court's discretion. *See* Rules of Court, rule 8.137(f)(1).

The parties are reminded of their obligation to be familiar with and abide by all applicable Rules of Procedure, Rules of Court and Local Rules. The Clerk shall serve a copy of the minutes reflecting this order on all parties.

²"[T]he right to counsel [in a civil case] has been recognized to exist only where the litigant may lose his physical liberty if he loses the litigation." *Iraheta v. Superior Court* (1999) 70 Cal.App.4th 1500, 1503, 1508. There is no such risk here.

³ To the Court's knowledge, no published California decision has ever held that appointed counsel is an appropriate or required accommodation.